DATA PROCESSING AGREEMENT (DPA)

This Data Processing Agreement (hereinafter referred to as "**Agreement**") is entered into on **3 November 2026** (hereinafter referred to as "**Effective Date**") by and between:

1. NAMIYA RETAIL PRIVATE LIMITED, a company incorporated under the Companies Act, 2013 (CIN: U52100DL2018PTC334567), having its registered office at 24 Meridian Business Park, Nehru Place, New Delhi 110019, India, represented by its Director and Authorised Signatory, **Ms. Ananya Mehra** (hereinafter referred to as "**Namiya**" or "**Data Fiduciary**"); and

2. NIMBUSLEDGER TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013 (CIN: U72900UP2020PTC128942), having its registered office at 18 Cedar Technology Park, Sector 62, Noida, Uttar Pradesh 201309, India, represented by its Director and Authorised Signatory, **Mr. Rohan Sethi** (hereinafter referred to as "**NimbusLedger**" or "**Data Processor**").

Data Fiduciary and Data Processor are hereinafter individually referred to as a "**Party**" and collectively as the "**Parties**."

PREAMBLE & RECITALS

WHEREAS:

A. The Data Fiduciary operates an online retail business selling consumer goods across India, serving approximately 25,000 active adult customers and handling approximately 4,000 customer support queries monthly, and in connection therewith determines the purposes and means of processing Personal Data;

B. The Data Fiduciary and Data Processor have entered into Master Services Agreement **AR/NL/2026/017** dated **3 November 2026** (hereinafter referred to as "**Principal Agreement**"), pursuant to which the Data Processor provides hosted customer support software, ticket management, and managed technical support services (hereinafter referred to as "**Services**") for a term running from **3 November 2026 to 2 November 2027** for a total annual fee of INR 24,00,000 (Rupees Twenty-Four Lakhs Only) plus applicable taxes;

C. The provision of the Services requires the Data Processor to access, host, store, retrieve, and process Personal Data strictly on behalf of and under the documented instructions of the Data Fiduciary;

D. The Parties intend that the Data Processor shall process Personal Data solely in accordance with documented instructions, section 8(2) of the Digital Personal Data Protection Act, 2023 (hereinafter referred to as "**DPDP Act**"), Rule 6 of the Digital Personal Data Protection Rules, 2025 (hereinafter referred to as "**DPDP Rules**"), and the terms of this Agreement; and

E. This Agreement sets out the baseline technical, security, operational, and legal framework governing such processing, including mandatory operational annexures (Annexures A through C).

NOW, THEREFORE, IN CONSIDERATION OF THE MUTUAL PROMISES AND COVENANTS CONTAINED HEREIN, THE PARTIES AGREE AS FOLLOWS:

1. DEFINITIONS AND INTERPRETATION

1.1. Defined Terms: Capitalised terms used but not defined herein shall have the meanings assigned to them in the DPDP Act and DPDP Rules.

(a) **"Applicable Data Protection Law"** means all Indian statutory laws, rules, regulations, directions, and binding codes governing data privacy, personal data protection, cybersecurity, and incident reporting applicable to the processing of Personal Data hereunder, including:

(i) The Digital Personal Data Protection Act, 2023 ("**DPDP Act**") and the Digital Personal Data Protection Rules, 2025 ("**DPDP Rules**"), to the extent in force and applicable;

(ii) The Information Technology Act, 2000 ("**IT Act**") and the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 ("**SPDI Rules**"), to the extent in force and applicable, and

(iii) The Cyber Security Directions issued by the Indian Computer Emergency Response Team (CERT-In) under section 70 B (6) of the IT Act ("**CERT-In Directions**") to the extent in force and applicable.

(b) **"Commencement Date"** means the Effective Date, 3 November 2026. All express contractual obligations under this Agreement apply from that date. Statutory obligations apply as and when the relevant provisions come into force and become applicable to the processing; later statutory commencement does not defer an express contractual obligation.

(c) **"Data Principal"** means the individual to whom Personal Data relates, specifically being the adult individual customers, customer representatives, and authorized employees of the Data Fiduciary.

(d) **"Excluded Data"** means personal data of children (individuals under 18 years of age), financial payment credentials (card numbers, CVVs, net banking credentials), biometric data, health records, and government identification numbers (including Aadhaar numbers, Resident Registration Numbers, or MyNumber equivalents).

(e) **"Personal Data"** means any data about an individual who is identifiable by or in relation to such data, processed by or on behalf of the Data Processor under the Principal Agreement, including metadata, logs, backups, and ticket records.

(f) **"Security Incident"** means any confirmed or suspected event involving unauthorized or accidental access, destruction, loss, alteration, disclosure, or compromise of Personal Data, or any operational disruption to the Processor's systems hosting Personal Data.

(g) **"Sub-processor"** means any third-party vendor, infrastructure provider, SIEM/monitoring service, or communications gateway engaged by the Data Processor who receives, stores, or accesses Personal Data.

(h) "Business Day" means a day other than Saturday, Sunday or a public holiday in New Delhi, India. Unless expressly stated otherwise, references to days mean calendar days.

(i) "Change of Control" means a transaction or series of related transactions resulting in a person acquiring, directly or indirectly, more than 50% of the voting rights in the Data Processor or the power to control its management or appoint a majority of its directors.

1.2. Interpretation: Words importing the singular include the plural and vice versa. References to "Clauses" and "Annexures" are to clauses of and annexures to this DPA. Annexures A through C form an integral part of this Agreement.

2. PRECEDENCE AND LEGAL EFFECT

2.1. This Agreement forms part of and is incorporated into the Principal Agreement.

2.2. In the event of any conflict or inconsistency between the provisions of this DPA and the Principal Agreement, the terms of this DPA shall prevail regarding the processing of Personal Data, data security, incident response, liabilities for data breaches, and statutory compliance.

2.3. Nothing in this Agreement shall be construed to relieve either Party of its direct, non-waivable statutory obligations under Applicable Data Protection Law.

3. ROLE OF THE PARTIES & INSTRUCTION FRAMEWORK

3.1. Purpose Limitation: The Data Fiduciary determines the purpose and means of processing Personal Data. The Data Processor shall process Personal Data exclusively to provide the Services set out in **Annexure A**, solely upon documented written instructions from the Data Fiduciary.

3.2. Authorised Instruction Issuers: The Data Processor shall accept operational processing instructions **only** from the named, authorized individuals designated in **ANNEXURE B** or their delegates appointed in writing by such individuals ("Authorised Fiduciary Representatives"). Instructions through a shared mailbox or service desk may be acted upon only after the issuer's identity and authority have been authenticated. Unverified instructions shall be held pending verification; use of an approved shared channel does not by itself invalidate an authenticated instruction.

3.3. Statutory Accountability: The Data Fiduciary remains accountable under section 8(1) of the DPDP Act for establishing a lawful basis (consent or certain legitimate uses) for processing. Outsourcing processing to the Data Processor does not transfer statutory fiduciary accountability.

3.4. Unlawful Instructions: If the Data Processor considers that an instruction from the Data Fiduciary violates Applicable Data Protection Law, it shall immediately inform the Data Fiduciary in writing, specifying the legal basis for its objection, and suspend implementation of that specific instruction pending written clarification. A manifestly unlawful instruction shall not be implemented notwithstanding any subsequent confirmation by the Data Fiduciary.

4. PROCESSING RESTRICTIONS & SCOPE EXCLUSIONS

4.1. Absolute Prohibitions: The Data Processor shall not:

(a) Sell, rent, lease, license, or monetise Personal Data;

(b) Use Personal Data for direct marketing, commercial advertising, or independent profiling;

(c) Combine Personal Data with its own corporate datasets or datasets belonging to third parties;

(d) Enter Personal Data into public or private Artificial Intelligence (AI) models, Large Language Models (LLMs), or machine learning engines for training, fine-tuning, or evaluation; or

(e) Extract or compile aggregate telemetry, service usage analytics, or anonymized customer metrics for its own commercial use without the express prior written consent of the Data Fiduciary.

4.2. Excluded Data Protocol: Excluded Data is outside the authorized Services. Accidental receipt does not authorize its ordinary use; the confidentiality, security, incident response and lawful preservation obligations in this Agreement continue to apply to it.

(a) The Data Fiduciary shall use reasonable technical controls to filter Excluded Data before transmission to the Processor.

(b) Free-Text Incident Workflow: If Excluded Data is discovered in customer support attachments, chat transcripts or other records, the Data Processor shall immediately, and no later than 24 hours from discovery:

(i) Move the affected file/ticket into an isolated, restricted-access quarantine repository;

(ii) Suspend ordinary processing and access to the Excluded Data, preserve any evidence subject to a binding legal hold or applicable incident investigation requirement, and seek documented instructions for secure redaction or deletion; and

(iii) Notify the Data Fiduciary through ANNEXURE B, identifying the data categories, containment steps and any preservation requirement. Secure redaction or

deletion shall be completed promptly in accordance with lawful documented instructions, subject to mandatory retention, without delaying any notification required by Clause 7.

5. PERSONNEL AND CONFIDENTIALITY

5.1. Confidentiality Undertaking: The Data Processor shall ensure that all personnel (including employees, contractors, and technical support engineers) authorized to process Personal Data:

(a) Are bound by enforceable written confidentiality undertakings;

(b) Have passed background verification checks prior to receiving system access;

(c) Receive role-based data protection and security awareness training upon induction and at least annually thereafter; and

(d) Access Personal Data strictly on a need-to-know basis. Access rights shall be revoked within 4 hours of employee termination or role change.

6. MANDATORY SECURITY SAFEGUARDS & CONTINUITY

6.1. Technical Baseline: The Data Processor shall implement and maintain the technical and organizational safeguards, which shall at a minimum include:

(a) **Encryption:** Encryption of all Personal Data in transit using TLS 1.3 (or TLS 1.2 minimum) and at rest using AES-256 bit encryption;

(b) **Access Control:** Multi-Factor Authentication (MFA) and strict Role-Based Access Control (RBAC) enforced for all platform administrative access;

(c) **Logical Segregation:** Complete logical separation of the Data Fiduciary's Personal Data from the data of other tenants in the shared cloud/infrastructure environment;

(d) **Logging & Monitoring:** Centralized logging of data access, system changes and security events, with logs securely retained within India for at least a rolling 180-day period under applicable CERT-In Directions. Where DPDP Rules 6 or 8(3) apply, retain the required Personal Data, associated traffic data and logs for the applicable one-year period or longer period required by law, as detailed in Annexure A;

(e) **Environment Isolation:** Absolute prohibition of production Personal Data in development, test, or staging environments;

(f) **Vulnerability Management:** Monthly vulnerability scanning and annual penetration testing conducted by an independent CERT-In empanelled auditing firm;

(g) **Backup & Recovery:** Daily encrypted backups with a Recovery Point Objective (**RPO**) of 24 hours and a Recovery Time Objective (**RTO**) of 12 hours, subjected to bi-annual recovery testing; and

(h) **Physical Security:** 24x7 security personnel, biometric access restriction, and CCTV monitoring at primary (Noida) and secondary (Pune) data center facilities.

7. INCIDENT MANAGEMENT AND REGULATORY REPORTING

7.1. Six-Hour Escalation Notice: The Data Processor shall notify the Data Fiduciary's incident contacts in ANNEXURE B by secure email without undue delay and no later than 6 (six) hours after becoming aware of a Security Incident or Personal Data Breach. The first notice shall state available facts concerning the nature, discovery time, affected systems and locations, data categories, estimated scale, likely consequences, containment measures and a response contact. Unknown details shall be identified and supplemented promptly, with updates at least every 24 hours until containment and material facts are established. Notification shall not await a complete investigation or confirmation of harm, and shall occur sooner where necessary to enable timely regulatory reporting.

7.2. Investigation and Mitigation: The Data Processor shall immediately contain the incident, conduct a root-cause analysis, preserve digital forensic evidence, and provide preliminary written findings to the Data Fiduciary within 24 hours, followed by a final Root Cause Analysis (RCA) report within 10 (ten) days.

7.3. CERT-In and Regulatory Filings:

(a) DPDP Notifications: Where section 8(6) and Rule 7 apply, the Data Fiduciary shall notify the Board and each affected Data Principal without delay. Updated and detailed information shall be supplied to the Board within 72 hours of the Data Fiduciary becoming aware, or within a longer period allowed by the Board on written request. The Data Fiduciary controls those notifications, with prompt assistance from the Data Processor, without restricting either Party's independent mandatory reporting duties.

(b) CERT-In Coordination: Each Party shall independently comply with any reporting duty applicable to it under the CERT-In Directions, including reporting specified reportable incidents within 6 hours of noticing them or being brought to notice of them. Neither Party shall wait for the other's approval or a completed investigation before making a mandatory report. The Data Processor shall promptly provide available technical information and coordinate reporting with the Data Fiduciary, supplementing initial reports as information becomes available. Where lawfully authorized, it may also report on the Data Fiduciary's behalf and provide a copy. Contractual escalation shall not extend any statutory deadline.

8. DATA PRINCIPAL RIGHTS AND ASSISTANCE

8.1. SLA for Assistance: The Data Processor shall assist the Data Fiduciary in fulfilling its obligations to respond to Data Principal requests under Chapter III of the DPDP Act (access, correction, completion, erasure, grievance redressal, and nomination).

8.2. The Data Processor shall execute data searches, exports, corrections, or erasures as instructed by the Data Fiduciary within **5 (five) Business Days** of receipt of a written request.

Urgent requests shall be actioned sooner where reasonably necessary to meet an applicable legal deadline. The Data Fiduciary remains responsible for identity verification and final decisions on Data Principal requests.

8.3. The Data Processor shall forward any direct communications or complaints received from Data Principals to the Data Fiduciary within **24 hours** without responding directly to the Data Principal.

9. SUB-PROCESSORS AND THIRD-PARTY ENGAGEMENT

9.1. Initial Register: The Data Processor warrants that as of the Effective Date, **no Sub-processors are approved** ("**ANNEXURE C**"). The Data Processor hosts the platform exclusively on its own proprietary infrastructure in Noida and Pune.

9.2. Prior Approval Procedure: The Data Processor shall not engage, replace, or modify any Sub-processor without obtaining the express, prior written consent of the Data Fiduciary at least 30 calendar days prior to granting such Sub-processor access to Personal Data.

9.3. Contractual Flow-down: Any approved Sub-processor must enter into a written agreement binding it to data protection standards no less restrictive than those set out in this DPA. The Data Processor remains fully liable to the Data Fiduciary for the acts, omissions, and defaults of its Sub-processors.

10. GEOGRAPHIC RESTRICTIONS AND TRANSFERS

10.1. Localized Processing: The Data Processor shall host, process, store, and back up Personal Data **strictly within the territory of India** at the facilities named in **Annexure A** (Primary: Noida, UP; Secondary DR: Pune, Maharashtra).

10.2. Overseas Access Ban: Remote access, viewing, or support administration from locations outside India is strictly prohibited. The Data Processor shall not transfer, route, or expose Personal Data to any jurisdiction outside India without a formal written amendment to this DPA executed in compliance with section 16 of the DPDP Act and Rule 15 of the DPDP Rules.

11. AUDIT AND COMPLIANCE VERIFICATION

11.1. Audit Rights: The Data Fiduciary or its authorized independent auditor, bound by confidentiality, may audit the Data Processor's relevant facilities, systems, processing logs, ISO/IEC 27001 certification and SOC 2 Type II assurance report once per calendar year on 14 calendar days' written notice. The scope and validity of certification and the reporting period and qualifications of assurance reports shall be accurately disclosed. Audits shall protect unrelated customer information without preventing meaningful verification.

11.2. Urgent Audits: The advance notice requirement shall be waived, and an immediate audit permitted, in the event of a Security Incident, a reasonable suspicion of material non-compliance, or a directive issued by the Data Protection Board of India or CERT-In.

12. INDEMNIFICATION

12.1. Processor Indemnity: The Data Processor shall defend, indemnify, and hold harmless the Data Fiduciary, its directors, officers, and employees against all direct damages, losses, statutory penalties levied by regulatory bodies (only to the extent indemnification is legally permissible), third-party claims, legal fees, and documented incident containment costs to the extent caused by:

(a) Any breach of this DPA or Applicable Data Protection Law by the Data Processor or its Sub-processors; or

(b) Negligence, gross negligence, or wilful misconduct by the Data Processor's personnel.

12.2. Fiduciary Indemnity: The Data Fiduciary shall indemnify and hold harmless the Data Processor against third-party claims to the extent caused by the Data Fiduciary's failure to establish a lawful ground under Applicable Data Protection Law, including consent or an applicable certain legitimate use under sections 6 and 7 of the DPDP Act, or by unlawful documented instructions, except to the extent the Data Processor contributed to the claim or failed to comply with Clause 3.4.

12.3. Claims Procedure: The indemnified Party shall promptly notify the indemnifying Party, provide reasonable cooperation at the latter's cost, and permit it to control the defence of third-party civil claims with competent counsel. Late notice reduces recovery only to the extent of proven prejudice. No settlement admitting fault, imposing non-monetary obligations or failing to provide a full release may be made without the indemnified Party's prior written consent, not unreasonably withheld. Each Party controls its own regulatory response. Recovery shall reflect each Party's contribution to the loss, require reasonable mitigation, and exclude double recovery. Indemnities are subject to Clause 13 and do not transfer statutory accountability or bind any regulator.

13. LIMITATION OF LIABILITY

13.1. Exclusions from Cap: The payment obligations of the Data Fiduciary under the Principal Agreement (fees due for Services rendered) are strictly excluded from, and shall not erode, any liability cap set forth in this Clause 13.

13.2. Fee Definition: For the purposes of this Clause 13, "**Fees**" shall mean the annual contract fee of INR 24,00,000 (Rupees Twenty-Four Lakhs Only) payable under the Principal Agreement, excluding applicable GST and documented out-of-pocket expenses. In the first 12 months of the contract, the reference Fee for liability calculations shall be fixed at INR 24,00,000.

13.3. Ordinary Liability Cap: Subject to Clauses 13.1, 13.4 and 13.5, each Party's aggregate liability under this DPA for routine contractual claims shall be capped at the greater of **INR 25,00,000** or 100% of the annual Fees.

13.4. Super Cap for Data Breaches: Subject to Clause 13.5, for any claim arising from a breach of confidentiality, data protection obligations, security safeguards, processing restrictions, Sub-processor rules, cross-border restrictions, or Clause 14 (Deletion), each Party's aggregate liability shall be capped at the greater of **INR 1,00,00,000** (Rupees One Crore Only) or 200% of the annual Fees. This Super Cap replaces—and is not cumulative with—the Ordinary Liability Cap.

13.5. Uncapped Liability: Nothing in this DPA limits or excludes liability for fraud, wilful misconduct, gross negligence, or liability that cannot lawfully be limited under Indian law.

14. DATA RETENTION, RETURN, AND SECURE ERASURE

14.1. Controlled Return and Verification: Upon termination or expiry of the Principal Agreement, or upon written request from the Data Fiduciary, the Data Processor shall:

(a) Within **15 calendar days** of termination, expiry or receipt of the written request, as applicable, securely export and return all requested Personal Data in a structured, commonly usable format (CSV / JSON with associated attachments), encrypted in transit using TLS 1.3;

(b) Obtain the Data Fiduciary's written confirmation of receipt and integrity within 5 Business Days after delivery. Any defect shall be notified within that period and promptly corrected. Lack of acknowledgement alone shall not authorize indefinite retention; and

(c) Securely erase active copies within 30 calendar days of termination, expiry or receipt of the request, subject to Clause 14.2(c). A genuine unresolved transfer defect may justify only a written, time-limited extension specifying the affected data, safeguards and revised deadline. Routine processing shall cease when the Services end, except for authorized transition, return, deletion or legally required retention.

14.2. Closed-Ticket & Backup Erasure:

(a) Closed Tickets: Customer support tickets closed in the ordinary course of business shall be retained for 90 calendar days and thereafter purged via an automated execution script, subject to Annexure A and the documented mandatory retention requirements in Clause 14.2(c).

(b) Backups: Backup archives containing Personal Data shall be securely overwritten or cryptographically erased within 90 calendar days of termination, expiry or receipt of an erasure request, as applicable, subject to Clause 14.2(c). Pending deletion, they shall be isolated from routine use. If restored, outstanding erasure instructions shall be re-applied before normal use resumes.

(c) Statutory Overrides: Mandatory retention prevails only for the specific data and period required by applicable law. This includes applicable CERT-In log retention and, when in force and applicable, the retention requirements of DPDP Rules 6 and 8(3). The Data Processor shall document the legal basis, dataset, custodian, purpose and expiry in a retention register, restrict access and use to that legal purpose, notify the Data Fiduciary unless prohibited, and securely erase the retained data when the requirement ends. A potential claim or general reference to a limitation period does not automatically authorize blanket retention.

14.3. Deletion Certificate: Within **10 calendar days** after each active-data and backup deletion stage, the Data Processor shall provide an authorized officer's signed certificate identifying the datasets, systems and Sub-processors covered, return and erasure dates, methods and verification performed, and remaining backup copies or lawful retention exceptions with their grounds and expiry dates. A final certificate shall follow deletion of all remaining copies; an unconditional complete-erasure certificate shall not be issued while copies remain.

15. REPRESENTATIONS, WARRANTIES, AND TERMINATION

15.1. Processor Warranties: The Data Processor represents and warrants that:

(a) It possesses the legal authority, technical capability, and infrastructure to perform the Services in compliance with Applicable Data Protection Law;

(b) It has not suffered any un-remediated major security breaches in the 12 months preceding the Effective Date; and

(c) It maintains ISO/IEC 27001 certification covering the Services and obtains a SOC 2 Type II report at least annually covering the relevant controls, accurately disclosing scope, validity, reporting periods and material exceptions. It shall promptly notify the Data Fiduciary of lapse, suspension or material qualification affecting the Services.

15.2. Insurance: The Data Processor shall procure and maintain a valid **Cyber Liability Insurance Policy** with a minimum coverage limit of **INR 1,00,00,000** (Rupees One Crore Only) per claim from a licensed Indian insurer for the entire term of this Agreement and maintain run-off coverage for 12 months post-termination.

15.3. Immediate Termination: The Data Fiduciary may terminate this Agreement and the Principal Agreement immediately upon written notice, without penalty or early termination fees, and receive a pro-rata refund of any prepaid, unearned fees, if the Data Processor:

(a) Commits a material breach of this DPA that is incapable of remedy, or fails to remedy a remediable breach within 15 calendar days of notice;

(b) Becomes insolvent, files for bankruptcy, or enters liquidation;

(c) Loses the ISO/IEC 27001 certification required by Clause 15.1(c), fails to obtain the required annual SOC 2 Type II report, or operates under a binding regulatory prohibition order; or

(d) Undergoes a Change of Control without prior written approval.

15.4. Term and Survival: This Agreement binds the Parties from the Effective Date and continues while the Data Processor or any Sub-processor retains Personal Data. Termination does not authorize routine processing or affect accrued rights. Confidentiality, security, restricted use, lawful retention, return and erasure, cooperation, indemnities, liability and dispute resolution survive to the extent necessary to protect remaining data and give effect to accrued rights.

16. GOVERNING LAW AND ARBITRATION

16.1. Governing Law: This Agreement shall be governed by and construed in accordance with the laws of the Republic of India.

16.2. Institutional Arbitration: Any dispute, controversy, or claim arising out of or in connection with this DPA, including any question regarding its existence, validity, or termination, shall be referred to and finally resolved by arbitration administered by the **Delhi International Arbitration Centre (DIAC)** in accordance with the DIAC Arbitration Rules in force at the time of commencement.

(a) Tribunal: The tribunal shall consist of a **sole arbitrator** jointly appointed by the Parties, who shall be an advocate with at least 15 years' experience in technology and data protection law or a retired Judge of the High Court of Delhi. If the Parties do not agree on an appointment within 30 days of a written arbitration request, the arbitrator shall be appointed in accordance with the DIAC Arbitration Rules, subject to applicable statutory eligibility requirements.

(b) Mandatory Disclosure: The proposed arbitrator shall make the disclosures required by section 12(1) of the Arbitration and Conciliation Act, 1996 in the form set out in its Sixth Schedule, with independence and impartiality assessed having regard to the Fifth Schedule. Ineligibility under section 12(5) read with the Seventh Schedule shall apply, subject only to a waiver permitted by that Act.

(c) Seat, Venue, & Language: The seat and legal place of arbitration shall be **New Delhi, India**. The language of arbitration shall be **English**.

(d) Timelines & Confidentiality: Section 29A of the Arbitration and Conciliation Act, 1996 shall strictly apply. The proceedings, awards, and evidence shall remain strictly confidential. Confidentiality does not prohibit disclosures required by law, to competent authorities or professional advisers bound by confidentiality, or reasonably necessary to seek interim relief or challenge or enforce an award.

16.3. Precedence: This Clause 16 strictly supersedes and overrides any conflicting dispute resolution or jurisdiction clause contained in the Principal Agreement.

16.4. Mandatory Remedies: Competent courts at New Delhi shall have supervisory jurisdiction over the arbitration, subject to mandatory law. Either Party may seek lawful interim relief. Nothing in this Clause restricts proceedings before the Board, statutory appeals or other non-waivable regulatory remedies.

17. MISCELLANEOUS & EXECUTION

17.1. Stamp Duty: This Agreement shall be executed on non-judicial e-stamp paper issued in New Delhi of appropriate value under the Indian Stamp Act, 1899, as applicable to the National Capital Territory of Delhi. The costs of stamp duty shall be borne equally by the Parties.

17.2. Counterparts: This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

17.3. Amendments: No modification or amendment of this DPA shall be valid unless executed in writing by authorized officers of both Parties.

17.4. Severability: If any provision is held invalid, unlawful or unenforceable, it shall be severed only to the necessary extent and the remainder shall continue in effect. The Parties shall agree a lawful replacement reflecting the original intent as closely as permitted by law.

17.5. Waiver: Failure or delay to exercise a right, or its partial exercise, is not a waiver. Any waiver must be in writing and signed by the Party granting it, applies only to the stated instance and does not waive a subsequent breach or any mandatory legal requirement.

17.6. Notices and Contact Updates: Formal notices shall be sent by tracked courier to the registered offices and by email to the legal contacts in Annexure B and take effect on recorded delivery or acknowledged email receipt. Incident notices shall be sent immediately to the incident email contacts and need not await acknowledgement to trigger response duties. Authorised contacts and authenticated backup channels may be updated by written notice without amending this Agreement; changes shall be independently verified before use.

EXECUTION BLOCK

IN WITNESS WHEREOF, the Parties hereto have caused this Data Processing Agreement to be executed by their duly authorized representatives as of the Effective Date.

FOR NAMIYA RETAIL PRIVATE LIMITED

_____

Signature
Name: Ms. Ananya Mehra
Title: Director
(Authorized vide Board Resolution dated 25 October 2026)

Witness 1:
Signature:

_____

Name:

_____

Address:

_____

FOR NIMBUSLEDGER TECHNOLOGIES PRIVATE LIMITED

_____

Signature
Name: Mr. Rohan Sethi
Title: Director
(Authorized vide Board Resolution dated 28 October 2026)

Witness 2:
Signature:

_____

Name:

_____

Address:

_____

OPERATIONAL ANNEXURES (A – C)

ANNEXURE A: PROCESSING PARTICULARS AND LOCATIONS

Field	Particulars
Subject Matter	Provision of cloud-hosted customer support ticketing platform, order query administration, and managed support desk services for e-commerce retail operations.
Nature & Purpose	Processing customer support communications, tracking order status, managing product returns/refunds, addressing service delivery complaints, and maintaining operational ticketing records.
Duration of Processing	From 3 November 2026 to 2 November 2027 (co-terminus with Principal Agreement AR/NL/2026/017), plus mandatory post-termination retention and erasure windows.
Categories of Data Principals	1. Active and historic adult retail customers of Namiya (approx. 25,000 individuals). 2. Authorized customer service representatives and operations staff of Namiya.
Categories of Personal Data	Full name, registered email address, primary phone number, physical delivery address, customer account ID, order numbers, transaction dates, query correspondence transcripts, and delivery instructions.
Excluded Data Categories	Children’s personal data, Aadhaar numbers, PAN/RRN/MyNumber digits, credit/debit card numbers, CVVs, net banking credentials, biometric identifiers, and health/medical notes.
Primary Processing Location	NimbusLedger Data Center 1: 18 Cedar Technology Park, Sector 62, Noida, Uttar Pradesh 201309, India.
Disaster Recovery (DR) Location	NimbusLedger DR Facility: Plot 5, Hinjewadi Phase 3, Pune, Maharashtra 411057, India.

Data Retention Schedule & Mandatory Legal Grounds

Data Type	Standard Retention	Statutory/Legal Retention	Controlling Law / Basis	Responsible Party
Active Support Tickets	While needed for Services	Applicable statutory retention; see note below	Services; Rules 6 / 8(3) when applicable	Namiya; Processor as custodian
Closed Support Tickets	90 days after closure	Retain specific records longer only where required by law	Clause 14.2; applicable statutory record duty	Namiya; Processor as custodian
Platform Access Logs	At least 180 days in India	Applicable one-year DPDP retention or longer legal requirement	CERT-In; Rules 6 / 8(3) when applicable	Processor operates logs; Namiya oversees its data
Customer Master Data	While needed for Services	Documented applicable retention; no blanket three-year duty	Clause 14; purpose and legal necessity	Namiya; Processor as custodian
Database Backups	90-day deletion cycle	Longer only where mandatory law requires	Contractual Clause 14.2; statutory override	Processor operates backups for Namiya

Retention Note: Where applicable, Rule 6 requires the specified security logs and Personal Data to be retained for one year, unless law requires otherwise; Rule 8(3) requires the relevant Personal Data, associated traffic data and processing logs for at least one year from processing for its specified purposes. These requirements prevail over shorter contractual periods. Tax or company-law retention applies only to specifically identified records under an applicable provision; limitation periods do not by themselves impose blanket retention. Required copies shall be restricted and erased when retention ends. The allocation above concerns operational responsibility and does not transfer statutory accountability or ownership of individuals' rights.

ANNEXURE B: CONTACT DETAILS AND NOTIFICATION MATRIX

1. Authorised Fiduciary Representatives

- **Primary Contact:** Ms. Ananya Mehra, Director
  Email: **ananya.mehra@Namiya.com**
  Address: 24 Meridian Business Park, Nehru Place, New Delhi 110019
- **Secondary Legal Contact:** Data Governance Team
  Email: **legal@Namiya.com**
  Instructions from this shared mailbox require authentication or written delegation under Clause 3.2.

2. Data Processor Representatives & 24x7 Incident Escalation Desk

- **Primary Technical Contact:** Mr. Rohan Sethi, Director
  Email: **rohan.sethi@nimbusledger.com**
  Address: 18 Cedar Technology Park, Sector 62, Noida, UP 201309
- **24x7 Cyber Security Incident Desk:**
  Email: incident-response@nimbusledger.com

ANNEXURE C: SUB-PROCESSOR REGISTER

Status as of Effective Date (3 November 2026): NO SUB-PROCESSORS APPROVED.

The Data Processor processes, hosts, manages, and backs up all Personal Data exclusively on its own proprietary infrastructure located at Noida (Primary) and Pune (DR), using direct in-house employees.